



CONTROLLED DRAFT

Privacy, DPIA, Data Governance & Retention

Privacy-by-design assessment, processing inventory and retention controls

Product	Nod
Document version	1.0
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Owner / operator	[NOD OWNER / LEGAL ENTITY]
Status	Controlled Draft

Release note: This pack is a production-ready baseline. Bracketed operator details must be completed before public release. Legal documents should be reviewed by Nigerian counsel before publication or execution.

1. Scope and legal framework

This assessment is designed around the Nigeria Data Protection Act 2023 and the NDPC General Application and Implementation Directive (GAID) 2025, while also accounting for Google Play disclosure obligations. GAID 2025 took effect on 19 September 2025. Final controller/processor classification and registration obligations depend on the operator's actual scale and processing activities and should be confirmed with a qualified DPCO/counsel.

2. Privacy architecture

- No Nod account is required for v1.
- No Nod-operated cloud content server is required for the core exchange path.
- Nod Profile is stored locally on the user device.
- Full profile/contact details are not broadcast during discovery.
- Content is disclosed only after session verification and user selection/approval.
- Transfer history retains minimal metadata rather than payload copies.
- Optional SDK/platform diagnostics must be separately inventoried and disclosed based on actual release build behavior.

3. Processing inventory / ROPA baseline

Data	Source	Purpose	Retention	Recipient
Nod Profile fields	User enters/imports own contact details	Provide reusable sharing identity	Stored locally until user edits/deletes/uninstalls, subject to backup exclusions	Local device only unless user chooses to share
Nearby alias / peer IDs	Generated/configured locally	Discovery and connection	Ephemeral/limited	Nearby peer devices; transport SDK as technically necessary
Selected contact payload	User-selected fields	Peer-to-peer sharing	Session/temp until delivered; no central retention	Chosen receiving peer
Selected files	User-selected URIs	Peer-to-peer sharing	No Nod server retention; temporary receiver copy during transfer	Chosen receiving peer
Camera frames / OCR text	Camera during scanner use	Recognize phone numbers	Process transiently; do not retain unless user explicitly saves image elsewhere	On-device OCR components; verify SDK behavior
Accelerometer events	Device sensor	Shake-to-Nod detection	Transient; not history	No intended external disclosure
Transfer metadata	Generated by app	History/support	User-controlled/local retention policy	Local device
Diagnostics	Technical app events	Troubleshooting	Minimal and time-limited	Only if user explicitly exports, unless third-party SDK has separate diagnostics

4. DPIA risk assessment

Risk	Impact	Likelihood before controls	Controls	Residual
Unintended disclosure of phone/email	High	Medium	Share profiles, field preview, explicit recipient and content	Low-Medium

			consent	
Nearby identity exposure	Medium	Medium	Alias only, time-limited visibility, no full profile broadcast	Low
Unwanted transfer request	Medium	Medium-High	Verification, decline, block, throttling, limited visibility	Low-Medium
Cloud backup contradicts local-only promise	High	Medium	Explicit backup exclusions and release tests	Low
Third-party SDK undisclosed processing	High	Medium	SDK register, Data Safety audit, no optional analytics by default	Low-Medium
Received malicious file opened	Medium-High	Medium	No auto-execute, safe intents, MIME checks and user action	Low-Medium

5. Data subject/user controls

- Edit/delete Nod Profile.
- Choose fields for each share.
- Decline any connection or payload.
- Clear transfer history.
- Block peers.
- Disable Always Ready/Shake to Nod.
- Revoke Android permissions through system settings.
- Uninstall app to remove app-local data, subject to platform backup/device-transfer behavior configured by Nod.

6. Retention policy

Category	Default retention
Nod Profile	Until user deletes/edits or app is uninstalled.
Share Profiles	Until user deletes/edits.
Pending received contact	Session only unless user saves it.
Incomplete file	Until transfer terminates; cleanup immediately or on next maintenance pass.
Transfer history	Local until user clears; product may define a default rolling period before release.
Blocklist	Until user unblocks or clears app data.
Diagnostics	No central diagnostics by default; exported support package generated only by explicit user action.

7. Compliance actions before launch

- Determine operator role and whether NDPC registration/CAR obligations apply at actual processing scale.
- Complete DPIA with final release build and SDK inventory.
- Publish Privacy Policy at stable URL and in-app.
- Complete Play Data Safety section accurately and keep synchronized with code and SDK changes.
- Document lawful basis/consent mechanics with Nigerian counsel where personal data is processed by the operator rather than solely on device.

Authoritative references

These links are included for implementation and legal review. Requirements can change; verify them again immediately before release.

- **Nigeria Data Protection Act 2023:** <https://ndpc.gov.ng/download/nigeria-data-protection-act-2023>
- **NDP Act General Application and Implementation Directive (GAID) 2025:** <https://ndpc.gov.ng/wp-content/uploads/2025/07/NDP-ACT-GAID-2025-MARCH-20TH.pdf>
- **Nigeria Data Protection Commission resources:** <https://ndpc.gov.ng/resources/>
- **Copyright Act 2022 - Nigerian Copyright Commission:** <https://www.copyright.gov.ng/CopyrightAct/>
- **Nigerian Copyright eRegistration System:** <https://eregistration.copyright.gov.ng/>
- **Google Play - User Data policy:**
<https://support.google.com/googleplay/android-developer/answer/10144311>
- **Google Play - Prepare your app for review:**
<https://support.google.com/googleplay/android-developer/answer/9859455>
- **Google Play - Target API requirements:**
<https://support.google.com/googleplay/android-developer/answer/11926878>
- **Google Play - Foreground service requirements:** <https://support.google.com/googleplay/android-developer/answer/13392821>